

Form No:HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

Case No: **Writ Petition No. 13887 of 2025**

Ahmad Nawaz Malik Vs **Addl. District Judge and 09 others**

S.No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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19.01.2026	Malik Javed Akhtar Wains and Ms. Aqsa Zahid, learned Advocates for the petitioner.
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This petition is directed against decisions of the learned two Courts refusing to allow application dated 07.06.2023 (the ‘**application**’) filed under Order VI Rule 17 of the Code of Civil Procedure-1908 (the ‘**Code**’).

2. Learned counsel for the petitioner has submitted that the proposed amendment will not change the nature and complexion of the suit, therefore, non-acceptance of the *application* is against the settled principles of law.

3. I have heard the learned counsel for the petitioner and gone through the record with their able assistance.

4. The revision-petitioner filed suit dated 28.01.2012 titled “*Ahmad Nawaz versus Muhammad Ashfaq and others*” (the ‘**suit**’), claiming that lease agreement dated 05.03.2007 (the ‘**agreement**’) with respondents No. 5 to 10, executed by respondent No. 3 (Muhammad Ashfaq), is without authority of the revision-petitioner. It is averred that property as detailed in the *suit* (the ‘**suit property**’) is owned by the revision-petitioner, Muhammad Ashfaq and Karim Nawaz (three brothers) in equal shares. After about eleven (11) years of the *suit*, through the *application* amendment is sought, essentially to the effect that Muhammad Ashfaq is *benamidar* to the extent of 1/3 share in the *suit property*.

5. Fundamental principle of ‘*benami* transaction’ is that on the basis of confidence upon a party, transaction was recorded in the papers in his favour on behalf of another, who is the real owner / transferee¹. Such claims require determination

¹ Ahmad Yar and 6 others versus Ghulam Rasool and others (2016 CLC Note 42)

keeping in view the ingredients of *benami* transaction and principle already well settled.

6. Undeniably, the *suit* is for declaration that the *agreement* is illegal, being executed without lawful authority and the revision-petitioner is also entitled to mesne profits to the extent of his share. It is specifically pleaded in Paragraph No. 2 of the *suit* that the three brothers are entitled to equal benefits from the *suit property*, which is jointly owned by them. The sought amendment not merely results into resiling from the claim originally set-up in the *suit* but at the same time it will essentially change the nature of the *suit*.

7. It is settled that amendment should not be allowed where it alters the landscape of litigation leading to injustice, disadvantage and injury to the other-side of the litigation². Recently, the Honourable Supreme Court in *Muhammad Arif Tarar* case³ dealt with a situation where a litigant sought amendment in factual assertions, after ten (10) years. It is ruled in the said case that delay, though not conclusive, becomes a critical component when the same is without adequate explanation.

8. The learned counsel for the petitioner have also failed to give any explanation for extraordinary delay in seeking amendment, which even otherwise amounts to changing the very standpoint in the *suit*. The petition, therefore, is **dismissed** *in limine*, with no order as to costs.

(Sultan Tanvir Ahmad)
Judge

Approved for reporting
Announced in open Court on 09.02.2026.

*Iqbal**

Judge

² Secretary to Government (West Pakistan) Now N.W.F.P. Department of Agriculture and Forests, Peshawar and 4 others versus Kazi Abdul Kafil (PLD 1978 Supreme Court 242)

³ Muhammad Arif Tarar and another versus Matloob Ahmad Warraich and others (PLD 2025 Supreme Court 691)